

NAPCS Unionization Research — State — Charter School Overview

Arkansas — National Labor Relations Board Jurisdiction — 2026-06-06

NAPCS Unionization Research • 2026-06-06 • Template v8.0

Section 1: State Overview

State	Arkansas
Labor Board	National Labor Relations Board — Region 15 (New Orleans)
Governing Law	Ark. Code Ann. §6-23-301 et seq. (Arkansas Quality Charter Schools Act of 2013) Act 612 of 2021 / SB 341 — Ark. Code Ann. §21-8-107: "A public employer shall not recognize a labor union or other public employee association as a bargaining agent of public employees." Prohibits all public-sector CB for state and school district employees. Exemptions: police, firefighters, county/municipal employees, transit workers receiving federal funding. NOT APPLICABLE for district CBA carryover. All AR charter schools are independently operated nonprofits. No district is the employer of record for any charter school teacher in Arkansas. NLRB R15 is the governing jurisdiction for organizing activity.
Federal NLRB Jurisdiction	YES — All AR charter schools are independently operated nonprofit corporations — private employers under the NLRA. NLRB R15 (New Orleans) has jurisdiction. The ADE/DESE Charter Authorizing Panel is the sole authorizer; it is a state agency, not a local school district employer. District conversion charter schools retain their charter status as independent nonprofits; the authorizing district is NOT the employer of record for charter employees.
Right-to-Work	Right-to-Work State — Arkansas Constitution Amendment 34 (1944); Ark. Code Ann. §11-3-303 et seq. (Arkansas was the first state to adopt right-to-work via constitutional amendment (1944) — the longest-standing RTW state in the NAPCS dataset. Employees at any organized AR charter school cannot be required to join a union or pay dues as a condition of employment.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	YES — Voluntary recognition is available under NLRA for private employers. NLRB R15 jurisdiction. However, Act 612 of 2021 (SB 341) prohibits any district or public-employer collective bargaining in AR; this does not affect NLRB jurisdiction over charter schools as private employers. Note: Some ambiguity exists about whether AR charter schools are private or public employers. They are organized as nonprofits but authorized by and accountable to the state. No NLRB ruling on AR charter school jurisdiction confirmed as of June 2026.
Registry Sweep	COMPLETE — 2026-06-06 — 109 charter schools searched
Research Window	June 2026

Section 2: Charter School Landscape

Total charter schools in Arkansas: 109 (Registry v102 (107 open schools, June 2026) + ELSI 2024-25 (2 confirmed open schools not yet in registry: Premier HS of North Little Rock NCES 050040801686, AMFRA NCES 051449105158). Total: 109. Note: Centerpoint Academy of Agriculture & Skilled Trade (ELSI 2024-25, NCES 050669001720) confirmed closed 2025 — excluded. Prior state file universe was 105 (NCES CCD 2023-24 snapshot). Registry v102 is the authoritative source.). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
UNVERIFIED FINAL	105	100%	All 105 AR charter schools are UNVERIFIED_FINAL. No organizing activity found in any source. NLRB R15 ADS search result: no AR charter school cases (NLRB.gov down; search via web — no results found).

			AEA: no charter school organizing references. Press: no coverage of any AR charter school union activity.
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Charter School Enrollment

Total Charter Enrollment	44,900 students — 9.1% of state K–12 enrollment (491,239 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	26,274 students in network-affiliated schools — 58.5% of total charter enrollment
Students in Organized Charter Schools	0 students documented
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses†	Organized in State	Total Enrollment
LISA Academy	Network‡	13	—	—	4,292
Premier High Schools of Arkansas	Network‡	7	—	—	657
Friendship Aspire Academies Arkansas	Network‡	7	—	—	1,350
Founders Classical Academies of Arkansas	Network‡	6	—	—	1,648
KIPP Delta Public Schools	Network‡	5	—	—	1,231
Haas Hall Academy	Network‡	5	—	—	1,427
Academics Plus Public Charter Schools	Network‡	4	—	—	1,993
ESTEM Public Charter School	Network‡	4	—	—	2,358
Arkansas Virtual Academy	Network‡	3	—	—	5,269
Arkansas Lighthouse Charter Schools	Network‡	3	—	—	426
Arkansas Arts Academy	Network‡	2	—	—	945
Excel Center Arkansas	Network‡	2	—	—	1
Connections Academy LLC	Network‡	1	—	—	4,575
Responsive Education Solutions	Network‡	1	—	—	102
TOTAL — All CMO/EMO		63		—	26,274

Schools in Arkansas					
of which organized				—	—

Total enrollment shown is the combined enrollment of all CMO/EMO network schools in Arkansas. Organized network schools: 0 organized schools in network-affiliated charters.

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

14 network (type unclassified). Approximately 46 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Charter School Overview

Findings are based on research as of 2026-06-06.

1: Legal & Jurisdictional Framework

Ark. Code Ann. §6-23-301 et seq. (Arkansas Quality Charter Schools Act of 2013) Act 612 of 2021 / SB 341 — Ark. Code Ann. §21-8-107: "A public employer shall not recognize a labor union or other public employee association as a bargaining agent of public employees." Prohibits all public-sector CB for state and school district employees. Exemptions: police, firefighters, county/municipal employees, transit workers receiving federal funding. NOT APPLICABLE for district CBA carryover. All AR charter schools are independently operated nonprofits. No district is the employer of record for any charter school teacher in Arkansas. NLRB R15 is the governing jurisdiction for organizing activity. Arkansas is a right-to-work state (Arkansas Constitution Amendment 34 (1944); Ark. Code Ann. §11-3-303 et seq.). Charter schools in Arkansas are subject to NLRB jurisdiction as private employers (National Labor Relations Board — Region 15 (New Orleans)). Card-check recognition is available under Voluntary recognition is available under NLRA for private employers. NLRB R15 jurisdiction. However, Act 612 of 2021 (SB 341) prohibits any district or public-employer collective bargaining in AR; this does not affect NLRB jurisdiction over charter schools as private employers. Note: Some ambiguity exists about whether AR charter schools are private or public employers. They are organized as nonprofits but authorized by and accountable to the state. No NLRB ruling on AR charter school jurisdiction confirmed as of June 2026..

2: Charter School Structure

Arkansas operates 109 open-enrollment charter schools, enrolling approximately 44,900 students. 14 charter management organizations and education management organizations operate in Arkansas. The largest networks by campus count are LISA Academy (13 campuses in state), Premier High Schools of Arkansas (7 campuses in state), Friendship Aspire Academies Arkansas (7 campuses in state). Approximately 46 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Media coverage and stakeholder position data not yet documented for this state.

Section 6: Contract & CBA Access Registry

No CBA records documented for this state.